

Y. Komaraiah Daya Shanker vs State Of Telangana And Another on 4 January, 2024

THE HON'BLE SRI JUSTICE K. SURENDER

CRIMINAL PETITION No.8162 of 2019

ORDER:

This Criminal Petition is filed by petitioner/Accused to quash the proceedings against him in C.C.No.403 of 2018 on the file of XV Additional Chief Metropolitan Magistrate, Nampally, Hyderabad. The offences alleged against the petitioner are under Sections 498-A, 406, 420 and 506 of the Indian Penal Code and Sections 4 and 6 of the Dowry Prohibition Act.

2. Heard learned counsel for the petitioner and learned Additional Public Prosecutor for the respondent-State.

3. The case of the 2nd respondent-wife is that she was married to this petitioner on 17.02.2000 in the presence of elders. Thereafter, a son was born to them. The petitioner-husband was alleging that his wife i.e. 2nd respondent is having illegal affairs with others and he is not the biological father of the child born to her. The property documents of the 2nd respondent were taken by the petitioner/accused. The petitioner used to allege that the 2nd respondent had illegal affairs with paper boy and also the person who supplies milk. While she was bathing, doors were opened by the petitioner, so that others could see her. He used to come home in drunken condition and beat the 2nd respondent. Several other allegations are also alleged against the petitioner.

4. On the basis of the said allegations, Police filed charge sheet.

5. Learned Counsel for the petitioner-husband would submit that on the basis of the petition filed by the petitioner-husband in HMOP.No.394/2018, the learned Family Court Judge by order dated 09.10.2019 dissolved the marriage of the petitioner with 2nd respondent. The Court held that the marriage with the 2nd respondent was in contravention of Section 5(1) of the Hindu Marriage Act and accordingly held that the question of dissolving the marriage does not arise, since marriage itself was void. Further, learned counsel relied on the Judgment of Honourable Supreme Court in P.Sivakumar and others v. State 1. In the said Judgment the Honourable Supreme Court was dealing with an appeal filed on the ground that the marriage was dissolved. Honourable Supreme Court held that if the marriage was null and void, the conviction under Section 498-A of IPC cannot be sustained.

6. In the present case, it is admitted that marriage has taken place between the petitioner and 2nd respondent. The petitioner 2023 Law Suit (SC) 132 had filed the divorce application on the ground of cruelty. However, on facts, the learned Family Court Judge found that in accordance with Section 5(i) of the Hindu Marriage Act, the marriage was void since the petitioner married the 2nd respondent during subsistence of marriage of first wife.

7. Marriage was admitted and also that son was born to the 2nd respondent during the time they were living together. On facts it cannot be said that the finding in the divorce application by the Family Court has a bearing on the present application. Both lived as husband and wife. Petitioner attributed adultery to the wife, which prima facie amounts to cruelty.

8. In the said circumstances when there are allegations of harassment during their stay together, this Court is not inclined to quash the proceedings.

9. Accordingly, Criminal Petition is dismissed.

As a sequel, miscellaneous petitions, pending if any, shall stand closed.

_____ K.SURENDER, J Date: 04.01.2024 tk